

**PR-24-001121 IN THE MATTER OF THE MARIA A GONZALEZ 2016
IRREVOCABLE TRUST - Petitioner's Amended Motion to Set Aside /
Vacate Dismissal - DENIED.**

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons set forth below, the motion is DENIED. The Court construes the amended motion as seeking relief under either Code of Civil Procedure section 1008 or Code of Civil Procedure section 473. To the extent the motion is construed as a motion for reconsideration under Code of Civil Procedure section 1008, Petitioner has not demonstrated any new or different facts, circumstances, or law. The motion is based principally upon allegations concerning the trust property sale, the amount reflected in the waiver, the trust accounting, and the validity of the waiver. Those same contentions were asserted in Petitioner's July 16, 2026 declaration and supporting exhibits filed and served prior to the July 21, 2026 hearing. Petitioner further alleges that he learned the relevant information concerning the alleged sale-price discrepancy in October 2024, well before the July 2026 hearing. Accordingly, Petitioner has not shown that the information relied upon in the present motion constitutes new or different facts within the meaning of section 1008. To the extent the motion seeks relief under Code of Civil Procedure section 473, Petitioner has not demonstrated that the dismissal resulted from mistake, inadvertence, surprise, or excusable neglect. The motion does not identify any procedural circumstance warranting relief under section 473 and instead challenges the merits of the Court's prior determination concerning the effect of the waiver and Petitioner's allegations regarding trust administration. The Court further notes that the amended motion repeatedly states that Petitioner's declaration was dismissed without prejudice. The July 21, 2026 minute order reflects that the Court found there were no issues for trial and dismissed the petition with prejudice. The Court expresses no opinion regarding the ultimate merits of Petitioner's allegations concerning trust administration, accounting issues, trustee conduct, or the enforceability of the waiver. The Court finds only that Petitioner has not established a basis for relief from the July 21, 2026 dismissal order under either Code of Civil Procedure section 1008 or Code of Civil Procedure section 473. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 118e6d3c8a6464b6eeaab0aa93a6ec136be777c04a84a5b691a5a47b76e97181

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Petitioner further alleges that he learned the relevant information concerning the alleged sale-price discrepancy in October 2024, well before the July 2026 hearing. Accordingly, Petitioner has not shown that the information relied upon in the present motion constitutes new or different facts within the meaning of section 1008.

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The Court further notes that the amended motion repeatedly states that Petitioner's declaration was dismissed without prejudice. The July 21, 2026 minute order reflects that the Court found there were no issues for trial and dismissed the petition with prejudice.

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